

Counterfactual Order Denying Rehearing

Filed: July 1, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

The Court has considered Asterglen Freight Software, Inc.'s timely June 22 petition for panel rehearing and rehearing en banc. The petition challenges the June 8 decision dismissing the appeal and remanding because the district court's February 4 Rule 54(b) order contained no express determination that there was no just reason for delay.

Panel rehearing is DENIED. The certification motion and separate judgment demonstrate an intent to permit immediate review, but intent does not replace the determination required by Rule 54(b). The remaining interference claim and counterclaim share witnesses, communications, damages questions, and possible setoff with the dismissed contract claim. The district court did not state that it considered those relationships or explain why immediate judgment was appropriate. The panel also declines to retain the case for a corrective remand. On the record before it, dismissal leaves the district court free to address all remaining matters and any later request for supported certification.

No judge in regular active service has requested a poll on rehearing en banc. The request for rehearing en banc is therefore DENIED. The June 8 opinion and judgment remain unchanged, and the Court expresses no view on the merits of Count I.

Mandate calculation following denial

The clerk shall calculate mandate under Federal Rule of Appellate Procedure 41(b). The June 8 judgment produced a June 22 rehearing deadline and, if no timely petition had been filed, an ordinary issuance date of June 29. Asterglen instead filed its combined petition on June 22. The Court entered this denial on July 1. Seven calendar days after the denial is July 8.

Rule 41(b) directs issuance seven days after the time to seek rehearing expires, or seven days after entry of an order denying a timely petition for panel rehearing, petition for rehearing en banc, or motion to stay mandate, whichever is later. The two dates relevant here are June 29 and July 8. July 8 is later and therefore controls. The timely petition was not treated as absent merely because the Court denied it.

No motion to stay mandate is pending in this rehearing sequence, and no order shortens or extends the period. Unless a qualifying filing or later direction intervenes, the clerk shall release the mandate on July 8, 2026 and issue the June 8 opinion and judgment that day. This order decides rehearing only; it does not modify the dismissal, alter the remand, vacate the district court's Count I ruling, or assign costs differently from the judgment.

ENTERED BY ORDER OF THE COURT